

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
LEOTAUD GUERRA,

Plaintiffs

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, SERGEANT ELVIN PICHARDO OF
THE 46 PRECINCT, POLICE OFFICER RAMON
GARCIA, SHIELD 16636 OF THE 46 PRECINCT AND
NEW YORK CITY POLICE OFFICERS JOHN DOEDefendants
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Index Number:
Date Purchased:
Date Filed:

SUMMONS

Plaintiff's residence is:
1875 University Avenue
Bronx, NY 10453

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: December 2, 2021
Bronx, NY

Yours, etc.,


LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue, Suite 1H
New York, NY 10018
(646) 256-1007

To:

CITY OF NEW YORK,

NEW YORK CITY POLICE DEPARTMENT

SERGEANT ELVIN PICHARDO OF THE 46 PRECINCT

POLICE OFFICER RAMON GARCIA, SHIELD 16636 OF THE 46 PRECINCT

NEW YORK CITY POLICE OFFICERS JOHN DOE

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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LEOTAUD GUERRA,

Plaintiffs

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, SERGEANT ELVIN PICHARDO OF
THE 46 PRECINCT, POLICE OFFICER RAMON
GARCIA, SHIELD 16636 OF THE 46 PRECINCT AND
NEW YORK CITY POLICE OFFICERS JOHN DOE

Defendants
-----X

VERIFIED COMPLAINT

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Leotaud Guerra, (hereinafter referred to as "GUERRA") resides in Bronx, State of New York.
2. That at all times hereinafter mentioned, Sergeant Elvin Pichardo of the 46 Precinct, (hereinafter referred to as "PICHARDO") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Police Officer Ramon Garcia, Shield 16636 of the 46 Precinct, (hereinafter referred to as "GARCIA") was employed by the New York City Police Department.

4. That at all times hereinafter mentioned, the New York City Police Officers John Doe, involved in the arrest of Plaintiff (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

7. On or about March 19, 2021 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

8. That on or about October 7, 2021 the Honorable Mitchell Danziger deemed the Notice of Claim timely as to all causes of action listed herein.

9. That on or about June 3, 2021, a hearing required by Municipal Law 50-H was held. At said hearing Plaintiff testified and set forth the facts underlying Plaintiff’s claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim.

10. That on or about April 17, 2020 at approximately 5:00 PM in the vicinity of 1738 University Avenue, Bronx, NY Plaintiff was on his way to a local store to get some food when he was stopped, handcuffed and arrested by PICHARDO, GARCIA and DOES.

11. That at no time had Plaintiff engaged in any criminal or unlawful conduct.

12. That at no time did Plaintiff possess a controlled substance.

13. That after Plaintiff was arrested he was transported to the 46 precinct.
14. That after Plaintiff arrived at the 46 precinct he was placed into a cell with other male prisoners.
15. That after Plaintiff arrived at the 46 precinct he was strip searched and nothing illegal or unlawful was recovered.
16. That after being held for several hours at the 46 precinct, Plaintiff was transported to Bronx County Central Booking located at 215 East 161 Street, Bronx, NY 10451.
17. That on or about April 18, 2020 Plaintiff was arraigned in Bronx County Criminal Court on docket 2020BX006937, charging him with Criminal Possession of a Controlled Substance in the Seventh Degree and related offenses.
18. That at the time of his arraignment, Plaintiff was released and ordered to return to court.
19. That on and between April 18, 2020 and October 23, 2020 Plaintiff made numerous court appearances until the matter was dismissed upon application of the Office of the Bronx District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

20. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 19, as if more fully stated herein at length.
21. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
22. That as a result of the actions of Defendants, Plaintiff was seriously injured due to the intentional manner in which Defendants, their agents, servants, employees and/or licensees treated Plaintiff and he was wounded, suffered, still suffers, and will continue to suffer for some

time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

23. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

24. That as a result of the actions by Defendants Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

25. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

26. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days from work.

27. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

28. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 27, as if more fully stated herein at length.

29. The intentional verbal abuse, false arrest, false imprisonment and maliciously prosecuted by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

30. Defendants having no lawful authority to arrest Plaintiff did, nevertheless, unlawfully arrest Plaintiff with actual malice toward her and with willful and wanton indifference to and

deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

31. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 30, as if more fully stated herein at length.

32. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

33. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

34. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

35. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested.

Plaintiff is thus entitled to compensatory and exemplary damages.

36. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by claiming that Plaintiff possessed a controlled substance and marijuana when they knew he had not. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

37. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. At all times pertinent hereto, PICHARDO, GARCIA and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

39. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that PICHARDO, GARCIA and DOES committed within the scope of their employment.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST DEFENDANTS

40. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. The City of New York and New York City Police Department's failure to provide adequate training and supervision to PICHARDO, GARCIA and DOES constitutes a willful and

wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

42. That the City of New York and New York City Police Department knew that PICHARDO had thirty-nine (39) Civilian Complaint Review Board complaints, four (4) of which were substantiated and yet the defendants continued to employ PICHARDO.

43. That the City of New York and New York City Police Department knew that PICHARDO was the subject of a lawsuit brought for false arrest, false imprisonment, malicious prosecution and violation of statutory civil rights in violation of 42 U.S.C. sec.1983 in the case of Caceras v. City of New York et al, index number 09CV08134, U.S. District Court, Southern District. Despite such, defendants continued to employ PICHARDO.

44. That the City of New York and New York City Police Department knew that PICHARDO was the subject of a lawsuit brought for false arrest, false imprisonment, malicious prosecution and violation of statutory civil rights in violation of 42 U.S.C. sec.1983 in the case of Delacruz v. City of New York et al, index number 15CV07374, U.S. District Court, Southern District. Despite such, defendants continued to employ PICHARDO.

45. That the City of New York and New York City Police Department knew that PICHARDO was the subject of a lawsuit brought for false arrest, false imprisonment, malicious prosecution and violation of statutory civil rights in violation of 42 U.S.C. sec.1983 in the case of Delacruz v. City of New York et al, index number 16CV02570, U.S. District Court, Southern District. Despite such, defendants continued to employ PICHARDO.

46. That the City of New York and New York City Police Department knew that PICHARDO was the subject of a lawsuit brought for false arrest, false imprisonment, malicious prosecution and violation of statutory civil rights in violation of 42 U.S.C. sec.1983 in the case of

Jose Deleon v. City of New York et al, index number 15CV09804, U.S. District Court, Southern District. Despite such, defendants continued to employ PICHARDO.

47. That the City of New York and New York City Police Department knew that PICHARDO was the subject of a lawsuit brought for false arrest, false imprisonment, malicious prosecution and violation of statutory civil rights in violation of 42 U.S.C. sec.1983 in the case of Thomas Santos v. City of New York et al, index number 033239/2019E, Supreme Court, Bronx County. Despite such, defendants continued to employ PICHARDO.

48. That the City of New York and New York City Police Department knew that PICHARDO was the subject of a lawsuit brought for false arrest, false imprisonment, malicious prosecution and violation of statutory civil rights in violation of 42 U.S.C. sec.1983 in the case of Mohamed Diallo v. City of New York et al, index number 031500/2020E, Supreme Court, Bronx County. Despite such, defendants continued to employ PICHARDO.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

49. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 48, as if more fully stated herein at length.

50. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

51. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

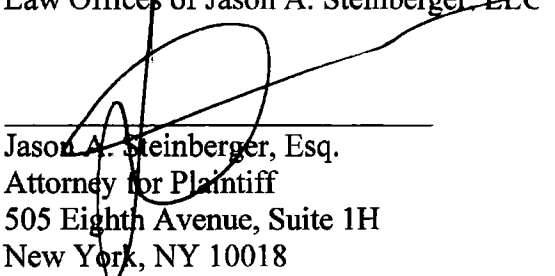
On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

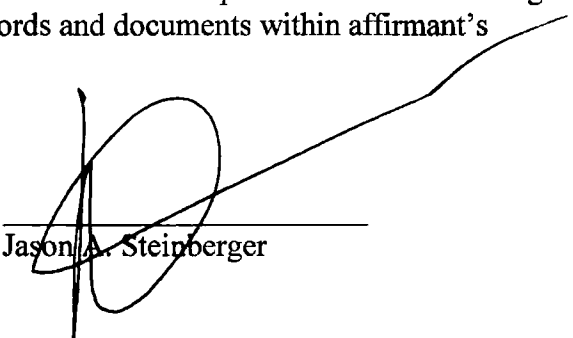


Jason A. Steinberger, Esq.
Attorney for Plaintiff
505 Eighth Avenue, Suite 1H
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: December 2, 2021



Jason A. Steinberger